

Harold F. McGuire argued the cause for petitioners in No. 20. With him on the brief were *B. S. Womble*, *Thomas Turner Cooke* and *Richard C. Stoll*.

Assistant Attorney General Berge argued the cause for the United States. With him on the brief were *Solicitor General McGrath*, *Charles H. Weston* and *Robert L. Stern*.

MR. JUSTICE BURTON delivered the opinion of the Court.

The petitioners are The American Tobacco Company, Liggett & Myers Tobacco Company, R. J. Reynolds Tobacco Company,¹ American Suppliers, Inc., a subsidiary of American, and certain officials of the respective companies who were convicted by a jury, in the District Court of the United States for the Eastern District of Kentucky, of violating §§ 1 and 2 of the Sherman Anti-Trust Act, pursuant to an information filed July 24, 1940, and modified October 31, 1940.

Each petitioner was convicted on four counts: (1) conspiracy in restraint of trade, (2) monopolization, (3) attempt to monopolize, and (4) conspiracy to monopolize. Each count related to interstate and foreign trade and commerce in tobacco. No sentence was imposed under the third count as the Court held that that count was merged in the second. Each petitioner was fined \$5,000 on each of the other counts, making \$15,000 for each petitioner and a total of \$255,000. Seven other defendants were found not guilty and a number of the original defendants were severed from the proceedings pursuant to stipulation.

The Circuit Court of Appeals for the Sixth Circuit, on December 8, 1944, affirmed each conviction. 147 F. 2d

¹ Here referred to as American, Liggett and Reynolds.